

Case :- WRIT - C No. - 833 of 2021

Petitioner :- Imran Husain

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Surya Narayan, Shashi Shukla

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Sri Pawan Kumar Misra, Advocate holding brief of Sri Pranjal Mehrotra, learned counsel for respondent nos.2 and 3 and learned Standing Counsel on behalf of State-respondent no.1.

Instant petition has been filed seeking following reliefs :

"(i) Issue a writ, order or direction in the nature of certiorari quashing the order dated 23.12.2020 passed by the opposite party no.2, Executive Engineer, Electricity Distribution Division II, Moradabad as well as notice/Provisional Assessment of Bill dated 23.12.2020 u/s 126 Electricity Act, 2003 filed as Annexure No.13 and 14 respectively to this petition.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the opposite party no.2/3 Executive Engineer, Electricity Distribution Division II, Moradabad not to execute the impugned order dated 23.12.2020 passed by him and stay the operation and effect of the order dated 23.12.2020.

(iii) Issue a writ, order or direction in the nature of mandamus summoning the whole file with regard to checking/inspection report no.08/286 dated 06.09.2019 from the office of Executive Engineer, Electricity Distribution Division II, Moradabad mentioned in notice dated 23.12.2020 u/s 126 Electricity Act, 2003 issued by the opposite party no.2."

At the very outset, learned counsel for the petitioner submits that aggrieved by recovery citation issued by respondent no.4, petitioner had approached this Court by filing Writ C No.20470 of 2020 and this Court vide order dated 03.12.2020 while allowing the writ petition quashed the recovery citation dated 28.09.2020 and has directed respondent no.2 to pass a fresh order after considering objection of the petitioner within a period of four weeks from the

date of the order.

In compliance of aforesaid order, petitioner has moved objection on 21.12.2020, which has been annexed as Annexure No.11 to this petition. Respondent no.3 has again committed a manifest error in considering the objection of the petitioner without giving any opportunity of hearing in person and had rejected the same by impugned order dated 23.12.2020.

Learned counsel appearing on behalf of respondent-Power Corporation submits that since the final order has been passed under Section 126 of the Electricity Act, 2003 (in short 'Act, 2003'), petitioner has an alternative remedy to file an appeal under Section 127 of the Act, 2003. It has further been contended that the impugned order has been passed after considering petitioner's objection, as such, it does not suffer from any error or illegality.

However, from perusal of the impugned order passed by respondent no.2, it appears that the representation was moved by the petitioner on 21.12.2020 but without appearance of the petitioner, impugned order has been passed merely on the basis of the representation without considering the objection which was already filed by the petitioner on 23.09.2020. In this view of the matter, the impugned order is not in consonance with Section 126 (3) of the Act, 2003 and Clause 8.1 of the Electricity Supply Code, 2005 as the respondent no.2 ought to have granted an opportunity of personal hearing to the petitioner on any date fixed, which is not evident from the impugned order.

In this view of the matter, order dated 23.12.2020 passed by respondent no.2 is hereby quashed. Respondent no.3 shall fix a date for hearing of the petitioner personally and thereafter shall consider the petitioner's representation in the light of objection moved by him.

Writ petition is, accordingly, allowed.

Order Date :- 19.1.2021
Manish Himwan